Temporary
3129

Executive Order

REJECTING THE BID OF BAUSCH AND LOMB OPTICAL COMPANY FOR CERTAIN SHARES OF THE CAPITAL STOCK OF C. P. GOERZ AMERICAN OPTICAL COMPANY, A NEW YORK CORPORATION, OFFERED FOR SALE AT PUBLIC AUCTION ON JUNE 25, 1919, PURSUANT TO THE "TRADING WITH THE ENEMY ACT" AND AMENDMENTS THEREOF.

By virtue of the authority vested in me by "An act to define, regulate and punish trading with the enemy, and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, and all other powers and authorities me hereto enabling, I do hereby make the following determination and order:

WHEREAS, the Alien Property Custodian offered for sale at auction in the City of New York, State of New York at 3:00 o'clock P. M. on the 25th day of June, 1919, certain shares of the capital stock and other property of C. P. Goerz American Optical Company, a New York corporation, said shares and other property being described as follows:

1. 549 Shares of the common capital stock of C. P. Goerz American Optical Company, a New York Corporation, of the par value of $100 each, out of a total of 600 shares of the common capital stock of said corporation, all of which are issued and outstanding. The said 549 shares being identified as follows:

1 Share standing in the name of A. Mitchell Palmer, as Alien Property Custodian, Trust No. 3480, and evidenced by certificate No. 14. Said share formerly stood in the name of Hans Tauscher and was evidenced by certificate No. 7, which has been cancelled on the books of the Company.

548 Shares standing in the name of A. Mitchell Palmer, as Alien Property Custodian, Trust No. 665, and evidenced by certificate No. 12. Said shares formerly stood in the name of Optische Anstalt C. P. Goerz Aktiengesellschaft, and were evidenced by certificates Nos. 8 and 9 for 2 shares and 546 shares respectively, which said certificates have been surrendered and cancelled.

2. Patents identified as follows:

Patent. No.	Date of Issue	Title
781,233	January 31, 1905	PRISM-SUPPORT FOR USE WITH OPTICAL INSTRUMENTS.
886,739	May 5, 1908	DEVICE FOR FOCUSING PHOTOGRAPHIC CAMERAS.
738,402	September 8, 1903	SHUTTER FOR PHOTOGRAPHIC OBJECTIVES.
745,550	December 1, 1903	PHOTOGRAPHIC OBJECTIVE.
777,320	December 13, 1904	PHOTOGRAPHIC OBJECTIVE.
784,487	March 7, 1905	TANGENT-SCALE TELESCOPE FOR GUNS.
813,933	February 27, 1906	AUTOMATIC RECORDING DEVICE.
829,121	August 21, 1906	TELESCOPE FOR SUBMARINE AND SUBMERGIBLE BOATS.
831,350	September 18, 1906	TELESCOPE WITH REFRACTED OPTICAL AXIS.
833,916	October 23, 1906	ROLLER-BLIND FOR PHOTOGRAPHIC CAMERAS.
836,273	November 20, 1906	PRISM-TELESCOPE.
879,572	February 18, 1908	TELESCOPE WITH DISPLACEABLE REVERSING SYSTEM.

Patent No.	Date of Issue	Title
881,127	March 10, 1908	INSTRUMENT FOR OPTICALLY MEASURING DISTANCES.
881,590	March 10, 1908	MOUNTING OF SIGHTING TELESCOPES.
882,762	March 24, 1908	PANORAMIC TELESCOPE.
886,722	May 5, 1908	TELESCOPE.
892,731	July 7, 1908	ANGLE-MEASURING INSTRUMENT WITH TELESCOPES.
898,653	September 15, 1908	PRISMATIC DOUBLE TELESCOPE.
902,822	November 3, 1908	FOLDING PHOTOGRAPHIC CAMERA.
904,066	November 17, 1908	PRISM-TELESCOPE AND SIMILAR PRISM-CARRYING DEVICE AND MEANS FOR ADJUSTING THE PRISMS.
1,160,614	November 16, 1915	DISTANCE-MEASURING INSTRUMENT.
1,160,615	November 16, 1915	AIMING DEVICE.
1,236,722	August 14, 1917	OPTICAL SYSTEM OF VARIABLE MAGNIFICATION.
1,247,185	November 20, 1917	DISTANCE-MEASURING INSTRUMENT.
1,196,116	August 29, 1916	FOLDING CAMERA.
1,199,238	September 26, 1916	PHOTOGRAPHIC PLATE-HOLDER.
1,209,958	December 26, 1916	PANORAMIC TELESCOPE.
564,216	July 21, 1896	PHOTOGRAPHIC SHUTTER.
648,123	April 24, 1900	TELESCOPIC TRIPOD.
677,460	July 2, 1901	PHOTOGRAPHIC MAGAZINE CAMERA.
687,373	November 26, 1901	FOCAL ADJUSTMENT FOR BINOCULAR OPTICAL INSTRUMENTS.
695,638	March 18, 1902	MAGAZINE PLATE-HOLDER.
695,639	March 18, 1902	PHOTOGRAPHIC ROLL HOLDER.
704,320	July 8, 1902	FOLDING CAMERA WITH ROLL-FILM MAGAZINE.
706,650	August 12, 1902	ASTIGMATICALLY CORRECTED WIDE-ANGLE OBJECTIVE.
706,651	August 12, 1902	MAGAZINE PLATE-HOLDER.
709,480	September 23, 1902	FOLDING STEREOSCOPIC CAMERA.
709,898	September 30, 1902	BINOCULAR PRISM-TELESCOPE.
877,499	January 28, 1908	DEVICE FOR SUCCESSIVELY EXPOSING SENSITIVE SHEETS.
599,700	March 1, 1898	COMBINED LENS FOR PHOTOGRAPHIC PURPOSES.
635,472	October 24, 1899	PHOTOGRAPHIC OBJECTIVE.
635,473	October 24, 1899	THREE-LENS SYSTEM FOR PHOTOGRAPHIC PURPOSES.
1,060,902	May 6, 1913	BASE-LINE TELEMETER.
1,066,906	July 8, 1913	DISTANCE-MEASURING INSTRUMENT.
1,066,955	July 8, 1913	MAGAZINE PLATE-HOLDER AND FILM-PACK THEREFOR.
1,067,027	July 8, 1915	TELEMETER.
1,085,611	February 3, 1914	ANNULAR MIRROR PERISCOPE.
1,085,612	February 3, 1914	ADJUSTING DEVICE FOR OPTICAL INSTRUMENT.
1,086,297	February 3, 1914	PRISMATIC DEVICE.
1,088,701	March 3, 1914	DISTANCE-MEASURING INSTRUMENT.
1,091,933	March 31, 1914	TELESCOPE WITH VARIABLE MAGNIFICATION.
1,097,635	May 26, 1914	TELESCOPE WITH VARIABLE MAGNIFICATION.
1,098,844	June 2, 1914	PACKAGE FOR LIGHT-SENSITIVE FILMS.
1,098,905	June 2, 1914	PERISCOPE.
1,104,769	July 28, 1914	OPTICAL SYSTEM FOR PRISM-CARRYING DEVICES.
1,108,180	August 25, 1914	BASE-LINE TELEMETER.
1,108,307	August 25, 1914	SPHERICALLY CHROMATICALLY ASTIGMATICALLY AND COMATICALLY CORRECTED DOUBLE OBJECTIVE.
1,116,069	November 3, 1914	TELESCOPE OF UNVARIABLE LENGTH AND PROGRESSIVELY-VARIABLE MAGNIFICATION.
1,136,951	April 27, 1915	SURVEYING INSTRUMENT.
1,146,428	July 13, 1915	DEVICE FOR TAKING AIM WITH QUICK-FIRING GUNS WITH PROTECTING SHIELDS AND TELESCOPIC SIGHT.
1,147,990	July 27, 1915	DISTANCE-MEASURING INSTRUMENT.
1,151,978	August 31, 1915	CINEMATOGRAPHIC APPARATUS.
907,366	December 22, 1908	SIGHTING TELESCOPE FOR ARMS AND ARM WITH SIGHTING TELESCOPE.
909,459	January 12, 1909	DEVICE FOR EXPOSING LIGHT-SENSITIVE LAYER-CARRIERS.
912,352	February 16, 1909	OBJECTIVE.
913,353	February 23, 1909	FOLDABLE REFLEX-CAMERA.
926,495	June 29, 1909	PHOTOGRAPHIC CHANGE-BOX.
930,621	August 10, 1909	PACKING FOR LIGHT-SENSITIVE LAYER-CARRIERS.
934,440	September 21, 1909	OCULAR PRISM FOR BASELINE TELEMETERS.
941,126	November 23, 1909	ROLLER-BLIND FOR PHOTOGRAPHIC CAMERAS.
941,503	November 30, 1909	OPTICAL DISTANCE-MEASURING INSTRUMENT.
944,595	December 28, 1909	PHOTOGRAPHIC CAMERA.

Patent No.	Date of Issue	Title
972,622	October 11, 1910	STEREOTELESCOPE.
976,370	November 22, 1910	PERISCOPE.
947,946	February 1, 1910	DEVICE FOR EXPOSING LIGHT-SENSITIVE LAYER-CARRIERS AND FILM STRUCTURE THEREFOR.
984,007	February 14, 1911	DEVICE FOR EXPOSING SENSITIVE LAYER-CARRIERS.
986,420	March 7, 1911	FILM PACK AND ADAPTER THEREFOR.
988,637	April 4, 1911	LEVEL.
989,784	April 18, 1911	PHOTOGRAPHIC CAMERA.
1,000,630	August 15, 1911	PACKING FOR LIGHT-SENSITIVE LAYER-CARRIERS.
1,001,958	August 29, 1911	ATTACHING DEVICE FOR OPTICAL INSTRUMENTS.
1,027,420	May 28, 1912	ANGULAR MIRROR.
1,038,831	September 17, 1912	DISTANCE-MEASURING INSTRUMENT OF THE COINCIDENT-IMAGE TYPE.

3. All of the rights, interests and benefits created in favor of or conferred upon said enemy, Optische Anstalt C. P. Goerz Aktiengessellschaft by a certain agreement dated on or about September 8th, 1906, between said enemy, Optische Anstalt C. P. Goerz Aktiengessellschaft and C. P. Goerz American Optical Company, whereby said enemy, Optische Anstalt C. P. Goerz Aktiengessellschaft granted to C. P. Goerz American Optical Company certain rights and license without payment of royalties or license fees by said C. P. Goerz American Optical Company to said Optische Anstalt C. P. Goerz Aktiengessellschaft, under all letters patent of the United States held by the said Opische Anstalt C. P. Goerz Akiengessellschaft; and also, said letters patent of the United States, and all claims and demands whatsoever created or existing in favor of or conferred upon said enemy, Optische Anstalt C. P. Goerz Aktiengessellschaft against said C. P. Goerz American Optical Company under said agreement, including the right to terminate such rights and licenses or any of them, and including also any and all reversionary rights and interests of said enemy, Optische Anstalt C. P. Goerz Aktiengessellschaft under and by virtue of said agreement.

AND WHEREAS, the highest bid received was fifty-seven thousand ($57,000) dollars for the entire stock and other property offered, which bid was made by Bausch and Lomb Optical Company.

The Alien Property Custodian is hereby authorized and shall have the right to reject all bids made at said sale, including the bid of the said Bausch and Lomb Optical Company, and to resell such property at public sale.

My reason for the foregoing determination and order is that the above stated price bid for the said property is inadequate and not the fair value thereof.

Done in the District of Columbia this 24th day of July in the year of our Lord one thousand nine hundred and nineteen, and in the year of the independence of the United States, the one hundred forty-fourth.

WOODROW WILSON

[No. 3129.]